

Amar Singh v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench, Court No. 21 · 28 February 2023 · WRIT - C No. 6841 of 2023 · **Disposed after withdrawal of theft recovery; fresh order under Supply Code.**

HEADNOTE

Demand of Rs. 26,691 for alleged theft of electricity — department states the recovery stands withdrawn and that a fresh order will follow a hearing — writ disposed of with liberty to pass that order only by the procedure prescribed under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Amar Singh challenged, before the High Court, a demand notice dated 11 January 2023 by which the electricity department sought recovery of Rs. 26,691 from him in a case of theft of electricity. The State of Uttar Pradesh and two others were the respondents. At the hearing, counsel for the electricity department stated that the impugned recovery had been withdrawn and that a fresh order would be passed after the petitioner was afforded an opportunity of hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Fresh order after withdrawal of a theft-recovery demand

HOLDING

The writ challenging the demand notice dated 11 January 2023 for recovery of Rs. 26,691 in an electricity-theft case is disposed of on the department's statement that the recovery stands withdrawn, with liberty to the electricity department to pass a fresh order after hearing the petitioner and following the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

fresh-order-only-under-supply-code-procedure

Once the electricity department withdrew the theft-recovery demand, the Court disposed of the writ and left any fresh order to be passed only after a hearing and in accordance with the procedure prescribed by the U.P. Electricity Supply Code, 2005. No clause of the Code was construed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS LIABLE FOR THEFT OF ELECTRICITY AND FOR THE SUM OF RS. 26,691

The impugned recovery was withdrawn. The Court did not examine the assessment and left any fresh order to the department after hearing. ¶ 1